
**DEPARTMENT
POLICY****SDA**

A **Special Living Arrangement** (SLA) is a group living facility that provides food, shelter and some level of supervision and/or care, see BEM 615, Group Living Facilities.

The following living arrangements are considered SLAs. A client in an SLA may be eligible for SDA and Medicaid. If eligible for SDA, they may be entitled to an incidentals allowance and/or provider payments. If not eligible for SDA, they still may be eligible for Medicaid.

- Adult Foster Care (AFC) home.
- County Infirmary (CTI) (domiciliary or personal care clients only).

Note: If not certified for domiciliary or personal care, the client is considered to be in independent living.

- Home for the Aged (HFA).
- Hospital (incidentals only) (HSP).
- Long-Term Care (LTC) facility (incidentals only).
- Substance Abuse Treatment Center (SAT) (incidentals only).

Reminder: A commercial room and board home is not an SLA.

SDA-SLA residents must meet all SDA eligibility factors unless indicated otherwise in this item. Policy and procedures for SDA SLA provider payments are in BAM 430.

**Application before
Admission****SDA**

When possible, obtain the SDA application **before** the SLA admission. You must process it if:

- The client resides in your county; **and**
- The SLA is in your county; **or**
- The SLA is in another county but the stay is expected to be 30 days or less (see Temporary Absence in this section).

If the client's expressed purpose in applying is to receive SLA benefits, determine eligibility using the facility as the living arrangement. Do not enter the provider authorization in Bridges before being notified of the client's date of admission and the level of care needed; see BAM 430, SDA Special Living Arrangement Authorization and Payment.

Application after Admission

SDA

Applications filed after SLA admission must be processed by the local office where the SLA is located, **regardless** of the client's county of residence or projected stay.

The local office where the client resides assists by:

- Removing the client's needs from any multimember case (see Processing an SLA Admission in this item), **or**
- Transferring the single-member SDA case record to the local office now responsible for handling the client's benefit determination.

An SLA resident may apply for SDA at any time during their stay. However, SLA provider payment **cannot** begin more than **10 calendar days** prior to the date of application. The date of application is the date DHS receives a signed application. The client and facility are jointly responsible for timely application.

Application Interview

SDA

An application interview **must** be conducted before or after a SLA admission.:

Responsible Relatives

SDA

Married clients in SLAs must try to obtain spousal support in some situations. Refer clients estranged from their spouses to the prosecutor according to instructions in BEM 256, Spousal/Parental Support.

Residence

SDA

To establish residence, a person entering a Michigan SLA facility must express intent to remain in the state after leaving the facility. Accept the statement of intent **unless** evidence contradicts it. Examples of such evidence:

- An out-of-state job is held for the client.
- An out-of-state home is maintained.
- A spouse/child whom the client lived with before the SLA admittance remains out of state.

Temporary Absence

SDA

A temporary absence is 30 days or fewer away from the client's home. No extensions are permitted.

Note: For temporary absence purposes, admission to an SLA is not an absence for medical reasons.

When a client's SLA stay in another county is expected to be temporary, process the application or make any necessary changes to the client's benefits, and retain the case record. The local office where the facility is located assists by:

- Forwarding SDA-SLA provider payment authorization information.
- Following up with the facility if problems arise in obtaining needed information.

When an SLA stay in a facility served by another local office is not expected to be temporary, transfer the application, or transfer the case to that local office immediately after notice of the admittance; see **Processing an SLA Admission** in this item and BAM 305, Assignment, Reassignment and Transfer.

BUDGETING

SDA

To be eligible, the client must have a \$1 deficit based on SDA standards. Bridges will compare the client's budgetable income against

the payment standard (provider payment and incidentals) for clients residing in an AFC, CTI or HFA.

For SATs, LTC facilities, and hospitals compare the client's budgetable income against the payment standard (incidentals allowance **only**) for those living arrangements.

Income will be budgeted against the appropriate SDA payment standard for that living arrangement.

Note: The amount of client **budgetable income** is the **client pay amount**.

Intake Cases

SDA

When an applicant reports income, enter the correct circumstance change date (CSCD). Bridges will combine the amounts already received and expected to be received to determine financial eligibility and the client pay amount.

Change Processing

SDA

In Bridges, changes, such as, SLA admission/discharge and changes in income, must be reported timely (within 10 calendar days). Failure to report a change timely will affect client benefits. Pay providers for the time care was provided, but no earlier than the date of admission, and not for the date of discharge.

A grant increase, or a decrease in the client pay amount, is considered a positive action. A grant decrease, or an increase in the client pay amount, is considered a negative action.

See BEM 515, FIP/RCA/SDA Needs budgeting, regarding change processing and how the timely or non-timely report of a change affects the effective date of the change.

Processing an SLA Admission

SDA

When an SDA client enters an SLA update the CSCD. Bridges recalculates the benefit amount using all countable income for the

benefit month and the payment standard for the new living arrangement.)

Complete a budget for subsequent month(s) whenever a change in income is expected.

If the SLA resident is part of a multimember case, use adequate notice to remove the individual from that case. The individual must file an SDA application, which cannot be approved until the client is removed from the other case. Once the SDA is approved, the client benefit is the incidentals allowance. The allowance is paid as a client warrant and added to the clients Bridge Card.

Upon SDA approval, the SLA provider payment for care may begin **up to 10 days prior to the date of application**. The provider payment amount, including pay for the period between admission and application, is the SLA **per diem** rate (minus any client pay amount). A provider payment authorization **must** be entered in Bridges in order for the provider to be paid; see BAM 430, SDA Special Living Arrangement Authorization and Payment.

Processing an SLA Discharge

SDA

When you learn that an SDA client has left a facility:

- Update the Household Information Screen and remove/update the Special Accommodations field.
- Update the CSCD and client address on the Household Address Screen.
- Update the Living Arrangement screen, change the CSCD and Living Arrangement Type.
 - Bridges recalculates the client benefits using all countable income for the benefit month and the payment standard for the new living arrangement.
 - Bridges ends the provider payment authorization to that provider.
 - Bridges begins an MPS provider payment authorization to the new provider, if appropriate.

- Bridges initiates closure **unless**:
 - The client entered another SLA facility and continues to be eligible; **or**
 - The client has a further need for SDA. Then, Bridges recalculates benefits according to the new living arrangement's payment standard; see BEM 261 regarding continued disability.

Final Provider Payment

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The final payment to an SLA provider is based on the **per diem** rate. The last day of payment is the **earlier** of either:

- The day prior to the day the client becomes ineligible (day preceding the negative action effective date).
- The day prior to the date of discharge. (DHS does not pay for the day of discharge).

Income Reporting

SDA

When the client reports an income change, do the following:

- Follow BEM 505 for income change processing.
- If required, recalculate the budget and determine how much the new client pay (budgetable income) should be (if any). The client pay amount will affect the provider payment amount and possibly the incidentals allowance benefit.
- Project the next month's income:
 - If projected to **increase** the **client pay** amount, timely notice is required to notify the client of the negative action; see BAM 220, Case Actions..
 - If the **client pay** (budgetable income) is projected to **exceed the provider payment**, this will end the provider payment authorization. The remainder of the client's budgetable income (exceeding the provider payment amount) will budget against the client benefit (incidental

allowance). The case will close, if there is not at least a \$1 budget deficit.

Reminder: Manually end Provider assignments for the case.

When the projected income includes SSI, refer to BEM 272, SDA Repay Agreements and BAM 430, Repayment Agreements.

LEGAL BASE

SDA

Annual Appropriations Act

Michigan Administrative Code R 400.3151 - 400.3180